

477-000-029 – Calculation of Resources Reserved for Community Spouse*Effective 1/1/25*

The assessment of resources is based on the value of resources owned during the month the alternate care spouse enters the specified living arrangement.

\$31,584 is the minimum amount.

\$157,920 is the maximum amount.

\$63,168 is twice the minimum amount.

\$315,840 is twice the maximum amount.

The community spouse is entitled to reserve the greater of:

1. One-half of the combined equity value of all countable resources not to exceed \$154,140 (the maximum amount); or
2. \$30,828 in equity value of countable resources (the minimum amount).

Figures listed are representative of dollar amounts

Previous Minimum and Maximum Amounts		
Year	Minimum	Maximum
2026	32,532	162,660
2025	31,584	157,920
2024	30,828	154,140
2023	29,724	148,620
2022	27,480	137,400
2021	26,076	130,380
2020	25,728	128,640
2019	25,284	126,420
2018	24,720	123,600
2017	24,180	120,900
2016	23,844	119,220
2015	23,844	119,220
2014	23,448	117,240
2013	23,184	115,920
2012	22,728	113,640
2011	21,912	109,560
2010	21,912	109,560
2009	21,912	109,560
2008	20,880	104,400
2007	20,328	101,640
2006	19,908	99,540
2005	19,020	95,100

Amounts Used for Budgeting Non-MAGI Couples (SIMP)

AMOUNTS USED FOR BUDGETING COUPLES	
Figures listed are representative of dollar amounts	
Income level (based on 150% of federal poverty level for two)	2,644*
*Effective 7/1/25 through 6/30/26	
Effective 7/1/26	2,705
Excess shelter limit	794*
*Effective 7/1/25 through 6/30/26	
Effective 7/1/26	812
Utility standard	599*
*effective through 12/31/25	
effective 1/1/26	615
Maximum maintenance allowance for ineligible spouse	3,948*
*effective through 12/31/25	
effective 1/1/26	4,067

Examples- Assessment and Designation of Resources**Example 1**

Mr. and Mrs. Edwards have been living in their own home. On 10/15/2013 Mr. Edwards enters a nursing home. On 1/20/2014 Mrs. Edwards contacts the Department to request an assessment of their resources. The worker completes Form IM-73 and determines what total countable resources were at the time Mr. Edwards entered the nursing home. The total of all resources owned as of 1/20/2014 is \$60,000. The minimum and maximum resource amounts are listed above.

Mrs. Edwards provides the worker with verification that total resources owned in 10/2013 were \$65,000. The spousal reserved amount is \$32,500. On Form IM-73 the Edwards resources as of 10/2013 consisted of:

Certificate of Deposit #1	\$25,000
Certificate of Deposit #2	\$25,000
Stocks ABC Company 100 shares worth \$100 per share	\$10,000
Bond E	<u>\$ 5,000</u>
TOTAL	\$65,000

Form IM-73 is completed and signed by both Mr. and Mrs. Edwards, a copy is given to each, and a copy is retained for the Department's record. \$32,500 is reserved for the community spouse (Mrs. Edwards).

On 5/1/2014 Mrs. Edwards requests an application for ABD for Mr. Edwards, who is still residing in the nursing home. The worker completes Form IM-74. Resources owned at the time of application are \$36,500, which include the \$32,500 community spouse allowance plus \$4,000 for the alternate care spouse.

On Form IM-74 the Edwards resources as of 5/1/2014 consist of:

Community Spouse Allowance		Alternate Care Spouse	
Certificate #4	\$10,000	Savings #6	\$4,000
Bond E	\$ 5,000		
Stocks ABC Company 100 shares worth \$100 per share	\$10,000		
Savings Account #5	<u>\$ 7,500</u>		
TOTAL	\$32,500		

Mr. Edwards meets all other eligibility requirements. The ABD application for Mr. Edwards is approved with a medical effective date of 5/1/2014; Mr. Edwards' nursing home care is paid for 4/1/2014 as are all other medical bills. Notice is sent advising him of the date of eligibility and also notifying him that he has 90 days from the date of the notice to complete the transfers of ownership so that only \$4,000 in resources remain in his name.

On 6/28/2014, Mrs. Edwards provides the worker with verification that Mr. Edwards' name has been removed from the CD, bond, stocks, and savings account #5. They put his \$4,000 into a new account, savings account #6.

Example 2

Mr. and Mrs. Bird have been living in their own home. On 12/9/2013, Mrs. Bird is admitted to a nursing home. Mr. Bird contacts the Department on 4/5/2014 and requests an assessment of their resources. The worker completes Form IM-73. Total resources owned as of 12/2013 are \$10,000. Since \$10,000 is less than the minimum amount for 2013, the minimum amount is used. The amount reserved for the community spouse is at least the minimum. Form IM-73 is signed by Mr. Bird (Mrs. Bird is unable to sign). Two copies are given to Mr. Bird, and one is retained for the Department record.

Since the client is already within resource limits, an application for ABD is completed on 4/5/2014. The worker also completes Form IM-74. The community spouse amount is \$10,000 and the applicant's share is \$0. Resources consist of:

Community Spouse Allowance		Alternate Care Spouse
Savings Account #1	\$ 8,500	
Checking Account #2	<u>\$ 1,500</u>	
TOTAL	\$10,000	TOTAL \$0.00

Example 3

Mr. and Mrs. Jones have been living in their own home. On 11/19/2012 Mr. Jones is admitted to a nursing home. On 3/26/2013 Mrs. Jones contacts the Department and requests an assessment of their resources. The worker completes Form IM-73 and determines what total countable resources were at the time Mr. Jones entered the nursing home. The total resources as of 11/2012 are \$500,000. The maximum community spouse allowance in 2012 was \$113,640. Form IM-73 is signed by both Mr. and Mrs. Jones. Each is given a copy, and a copy is retained for the Department record.

On 6/5/2013 Mr. Jones returns to the home with his wife. The assessment completed for 11/2012 becomes invalid.

On 1/24/2014 Mr. Jones is readmitted to the nursing home. The assessment completed on 11/2012 is again valid.

Example 4

Mr. and Mrs. Brown have been living in a house they rent. Mr. Brown was admitted to the nursing home on 2/15/2014. Mrs. Brown gave notice to her landlord and moved to an assisted living facility near the nursing home. On 4/28/2014 Mrs. Brown requests assistance to help with her husband's nursing home bills. Mrs. Brown does not need Medicaid for herself and requests an assessment of resources. Since Mrs. Brown does not reside in a hospital or nursing home or want assistance for herself, she may be a community spouse.

The worker completes the IM-73 for 2/2014, the month of entry to the nursing home, and countable resources total \$30,000. Half of \$30,000 is less than the year 2014 minimum reserved amount. Since the community spouse retains at least the minimum, the minimum amount is entered on the IM-73.